

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

SUMMONS WITH NOTICE

THOMAS RODRIGUEZ,

Plaintiff designates KINGS
County as the place of trial.

Plaintiff,

The basis of venue is:
Place of occurrence

-against-

Plaintiff's residence:
180 Troy Avenue
Apartment 3A
Brooklyn, NY 11213

THE CITY OF NEW YORK;
NEW YORK CITY POLICE
OFFICER ANTONIO
DINUZZO, Sheild No.: 21259;
JOHN DOE(S)/JANE DOE(S)
1-10," said names being
fictitious, as the actual names
and identification of said
individual police officers,
employed by The City of New
York and/or The New York City
Police Department, are unknown
at present,

Defendant(s).

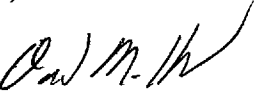
To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: October 27, 2023

DAVID M. HARRISON, ESQ.

Attorney for Plaintiff
Office & P.O. Address
48 Willoughby Street
Brooklyn, NY 11201
(718) 243-2109

By: 

David M. Harrison, Esq.

Defendant(s)' address:

THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007

NEW YORK CITY POLICE OFFICER ANTONIO DINUZZO, Shield No.: 21259s,
c/o 73rd Precinct, 1470 East New York Avenue, Brooklyn, NY 11212

Notice: The nature of this action is: CIVIL RIGHTS/ASSAULT AND BATTERY/USE OF
EXCESSIVE FORCE/PERSONAL INJURY/
VIOLATION OF CONSTITUTIONAL RIGHTS.

The relief sought is: MONEY DAMAGES.

Upon your failure to appear, judgment will be taken against you by default, for an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction, and which warrants the jurisdiction of this Court, with interest thereupon, and including the costs of this action.

****THIS ACTION FALLS WITHIN ONE OR MORE OF THE EXCEPTIONS SET FORTH IN
CPLR.1602**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

THOMAS RODRIGUEZ,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK; NEW
YORK CITY POLICE OFFICER
ANTONIO DINUZZO, Shield No.:
21259; "JOHN DOE(S)/JANE
DOE(S) 1-10," said names being
fictitious, as the actual names and
identification of said individual
police officers, employed by The
City of New York and/or The
New York City Police Department,
are unknown at present,

Defendant(s).

-----X

Plaintiff, by his attorney, **DAVID M. HARRISON, ESQ.**, complaining of the
defendants, respectfully sets forth and alleges as follows:

**AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF THE
PLAINTIFF, THOMAS RODRIGUEZ,
AGAINST THE DEFENDANTS HEREIN:**

1. That at all times hereinafter mentioned and prior thereto, the plaintiff,
THOMAS RODRIGUEZ, was and still is an adult resident of the County of Kings,
City and State of New York.

2. That at all times hereinafter mentioned and prior thereto, the defendant,
THE CITY OF NEW YORK (hereinafter referred to as "defendant NYC"), was and

still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned and prior thereto, defendant NYC has established and maintained a department of police, as a constituent department or agency of said defendant, commonly known and designated as “The New York City Police Department.”

4. That at all times hereinafter mentioned and prior thereto, The New York City Police Department was established by defendant NYC, and is maintained by said defendant as a constituent department or agency

5. That at all times hereinafter mentioned and prior thereto, defendant NYC has established and maintained said department of police commonly known and designated as The New York City Police Department, as a constituent department or agency of defendant NYC.

6. That at all times hereinafter mentioned and prior thereto, defendant NYC was and is a municipal entity created and authorized under the laws of the State of New York. Said defendant was and is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant NYC assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department.

7. That at all times hereinafter mentioned and prior thereto, defendant NYC was and is a municipal entity created and authorized under the laws of the State of New York. Said defendant was and is authorized to maintain a police department,

commonly known and designated as The New York City Police Department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant NYC assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by The New York City Police Department.

8. That at all times hereinafter mentioned and prior thereto, defendant NYC, its agents, servants, employees, representatives, and others on said defendant's behalf, operated, supervised, directed, maintained, monitored, oversaw and controlled The New York City Police Department, including the hiring, training and supervision of all police officers thereof.

9. That at all times hereinafter mentioned and prior thereto, the defendant, NEW YORK CITY POLICE OFFICER ANTONIO DINUZZO, Shield No.: 21259 (hereinafter referred to as "defendant DINUZZO"), was employed by defendant NYC as a police officer with The New York City Police Department.

10. That at all times hereinafter mentioned and prior thereto, the defendants, "JOHN DOE(S)/JANE DOE(S) 1-10," said names being fictitious, as the actual names and identification of said individual police officers, employed by The City of New York and/or The New York City Police Department, are unknown at present (hereinafter referred to as "defendants JOHN DOE(S)"), were employed by defendant NYC as police officers with defendant NYPD.

11. That a Notice of Claim was duly served and filed with the office of the Comptroller/Comptroller of the City of New York, pursuant to the applicable provisions of the General Municipal Law, which Notice of Claim was served and filed within

ninety days following the date of incident upon which the subject action is based, and before the commencement of the action, and this action was commenced against defendants NYC, DINUZZO and JOHN DOE(S), within one year and ninety days after the date of accrual of this action.

12. That a Notice of Claim was duly served and filed with the office of the Comptroller/Comptroller of the City of New York, which Notice of Claim was served and filed within ninety (90) days following the date of incident upon which the subject action is based and before the commencement of the action; and this action was commenced within one year and ninety days after the accrual of this cause of action and as such, plaintiff has satisfied all conditions precedent to lawful commencement of the within action against defendants NYC, DINUZZO and JOHN DOE(S)

13. That pursuant to the applicable provisions of the General Municipal Law, the plaintiff, THOMAS RODRIGUEZ, appeared for a 50-h hearing on October 19, 2023, conducted by and/or on behalf of defendants NYC, DINUZZO, and JOHN DOE(S), prior to the date of commencement of the subject action.

14. That defendants, NYC, DINUZZO, and JOHN DOE(S) have failed and refused to pay and/or adjust the claim within the statutory period of time following the happening of the event upon which the claim is based.

15. That this action has been commenced within one year and/or one year and ninety days following the happening of the event upon which the claim is based.

16. That at all times hereinafter mentioned, defendant DINUZZO was acting within the scope of his employment as a police officer with The New York City Police Department.

17. That at all times hereinafter mentioned, defendant DINUZZO was acting under color of law and authority as a police officer with the Police Department of The City of New York.

18. That at all times hereinafter mentioned, defendant DINUZZO was acting within the scope of his employment as a police officer with The New York City Police Department, pursuant to his employment with defendant NYC.

19. That at all times hereinafter mentioned, defendant DINUZZO was acting under color of law and authority as a police officer with defendant NYPD, pursuant to his employment with defendant NYC.

20. That at all times hereinafter mentioned, defendants JOHN DOE(S) were acting within the scope of their employment as police officers with the Police Department of The City of New York.

21. That at all times hereinafter mentioned, defendants JOHN DOE(S) are acting under color of law and authority as police officers with the Police Department of The City of New York.

22. That at all times hereinafter mentioned, defendants JOHN DOE(S) were acting within the scope of their employment as police officers with The New York City Police Department, pursuant to their employment with defendant NYC.

23. That at all times hereinafter mentioned, defendants JOHN DOE(S) were acting under color of law and authority as police officers with defendant NYPD, pursuant to their employment with defendant NYC.

24. That at all times hereinafter mentioned, defendant NYC employed defendant DINUZZO.

25. That at all times hereinafter mentioned, defendant NYC employed defendant DINUZZO in the capacity of a police officer with The New York City Police Department.

26. That at all times hereinafter mentioned, defendant NYC employed defendants JOHN DOE(S).

27. That at all times hereinafter mentioned, defendant NYC employed defendants JOHN DOE(S), in their capacity as police officers with The New York City Police Department.

28. That at all times hereinafter mentioned, defendants DINUZZO and JOHN DOE(S) were acting pursuant to their capacity as employees of defendant NYC.

29. That at all times hereinafter mentioned, defendants DINUZZO and JOHN DOE(S) were acting pursuant to their capacity as employees/police officers of defendant NYC, working for and/or on behalf of The New York City Police Department. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants, employees, and/or representatives of defendant NYC.

30. That on March 4, 2023, at approximately 4:20 A.M, at premises commonly known and designated as 870 Macon Street, Apartment 1D, in the County of Kings, City and State of New York, defendants DINUZZO and/or JOHN DOE(S) wrongfully assaulted and battered the plaintiff herein, inclusive of punching the plaintiff in the face and repeatedly punching/beating/striking/pounding the body of the plaintiff; and, thereafter, defendants DINUZZO and/or JOHN DOE(S) falsely and wrongfully arrested,

imprisoned, confined, detained, and otherwise abused the plaintiff, without any right or grounds thereof.

31. That defendants DINUZZO and/or JOHN DOE(S), after assaulting and battering the plaintiff, THOMAS RODRIGUEZ, at premises commonly known and designated as 870 Macon Street, Apartment 1D, in the County of Kings, City and State of New York, without basis, immediately handcuffed the plaintiff's wrists while arresting him, without reading the plaintiff his rights or even informing him as to why he was being arrested.

32. That defendants DINUZZO and/or JOHN DOE(S) failed to read the plaintiff his Miranda rights in connection with their arrest of the plaintiff, inclusive of said handcuffing.

33. That none of the police officers arriving at the scene located at 870 Macon Street, Apartment 1D, in the County of Kings, City and State of New York, upon said date and about said time, provided any help or assistance to the plaintiff.

34. That upon defendants DINUZZO and JOHN DOE(S) perpetrating/committing an assault and battery upon the plaintiff, THOMAS RODRIGUEZ, inclusive of punching the plaintiff in the face and repeatedly punching/beating/striking/pounding the body of the plaintiff, thereby resulting in the plaintiff sustaining serious, severe and permanent personal injuries.

35. That said assault and battery upon the plaintiff, THOMAS RODROGUEZ, inclusive of punching the plaintiff in the face and repeatedly punching/beating/striking/pounding the body of the plaintiff, was perpetrated and committed by defendants DINUZZO and JOHN DOE(S), as police officers employed by and/or

acting on behalf of defendant NYC.

36. That said assault and battery upon the plaintiff, THOMAS RODROGUEZ, inclusive of punching the plaintiff in the face and repeatedly punching/beating/ striking/pounding the body of the plaintiff, was perpetrated and committed by defendants DINUZZO and JOHN DOE(S), as police officers employed by and/or acting on behalf of defendant NYC, without any provocation or incitement on the part of the plaintiff.

37. That following said excessive physical force perpetrated upon and committed against the plaintiff, THOMAS RODRIGUEZ, inclusive of said assault and battery, defendants DINUZZO and JOHN DOE(S) removed the plaintiff from the scene of said arrest in handcuffs and brought him to the 73rd Precinct of defendant NYC's constituent agency, The New York City Police Department, located on 1470 East New York Avenue, in the County of Kings, City and State of New York.

38. That upon being taken to the 73rd Precinct station house for The New York City Police Department, plaintiff was imprisoned, confined and detained within a jail cell by the defendants, their employees, agents, servants, representatives and/or others acting on behalf of the defendants.

39. That while the plaintiff was imprisoned, confined and detained within the 73rd Precinct station house for the New York City Police Department, plaintiff's physical condition, resulting from said assault and battery, was eventually observed and noted by defendants NYC, DINUZZO and/or JOHN DOE(S), their employees, agents, servants, representatives and/or others acting on behalf of the defendants, to be so physically dire that plaintiff was taken by defendants DINUZZO and/or

JOHN DOE(S) from the stationhouse of said police precinct to a hospital/medical facility commonly known and designated as Interfaith Medical Center, located in the County of Kings, City and State of New York.

40. That while the plaintiff was seen and treated at Interfaith Medical Center for a period of hours, defendants DINUZZO and/or JOHN DOE(S) falsely advised hospital/medical personnel at said facility that the plaintiff had sustained injuries by “resisting arrest.”

41. That while the plaintiff was seen and treated at Interfaith Medical Center for a period of hours, the plaintiff remained continually handcuffed while continually being in the presence of defendants DINUZZO and/or JOHN DOE(S).

42. That upon being seen and treated by personnel at said medical/hospital facility commonly known and designated as Interfaith Medical Center, the plaintiff was subsequently taken in handcuffs by defendants DINUZZO and/or JOHN DOE(S) back to the 73rd Precinct station house, and thereafter to “Central Booking,” located at 120 Schermerhorn Street, in the County of Kings, City and State of New York, wherein plaintiff remained imprisoned, confined and detained for a period of an additional day thereafter.

43. That subsequent to said period of imprisonment, confinement and detainment within Central Booking, plaintiff appeared before the Honorable Criminal Court of the County of Kings, City and State of New York, at which time he was advised that he was being charged with having committed acts of domestic violence against his fiancé, Anne Malii, a/k/a Anne Malii Lazer Rodriguez (hereinafter referred to as “Anne Malii”); and further injurious activity to Anne Malii’s infant son

(hereinafter referred to as “C.M.”). Plaintiff was further informed of a temporary Restraining order/order of protection that specifically forbade him from having contact with Anne Malii, and her said infant son, C.M.

44. That said temporary restraining order/order of protection was issued despite Anne Malii having previously informed defendants DINUZZO and/or JOHN DOE(S) that no dispute between she and plaintiff existed, at the time of defendants’ arrival at said 870 Macon Street, Apartment 1D, Brooklyn, New York premises; and despite defendants DINUZZO and/or JOHN DOE(S) having no reasonable basis for believing that the physical welfare of C.M. was endangered by plaintiff’s presence.

45. That said temporary restraining order/order of protection was issued without the knowledge of Anne Malii at the time of its issuance.

46. That the issuance of said temporary restraining order/order of protection resulted from the plainly false and malicious actions perpetrated by defendants DINUZZO and JOHN DOE(S), as a means to justify the wrongful and improper actions knowingly taken by defendants DINUZZO and JOHN DOE(S), which, included defendants having assaulted, battered, punched, pounded, beaten, struck and physically abused the plaintiff, without basis, and having charged plaintiff for resisting arrest which defendants knew to be untrue, and with defendants having been informed by the so-called “victim” of said domestic violence charges brought against the plaintiff that no dispute between she and the plaintiff existed.

47. That said temporary restraining order/order of protection resulted from the false arrest and subsequent wrongful charges filed against the plaintiff by

defendants DINUZZO and JOHN DOE(S).

48. That upon appearing before the Honorable Criminal Court, County of Kings, State of New York, the plaintiff, THOMAS RODRIGUEZ, was charged with the following crimes: (i) Obstruction of Government Administration in the 2nd degree, pursuant to Penal Code Section 195.05; (ii) Escape, in the 3rd degree, pursuant to Penal Code Section 205.05; (iii) Attempted Assault in the 3rd degree, with intent to cause physical injury, pursuant to Penal Code Section 110-120.00.01; (iv) Menacing, in the 3rd degree, pursuant to Penal Code Section 120.15; (v) Assault in the 3rd degree, with intent to cause physical injury, pursuant to Penal Code Section 120.00.01; (vi) Action in Manner Injurious to Child, pursuant to Penal Code Section 260.10.10; (vii) Verbal Harassment in the 2nd degree, pursuant to Penal Code Section 240.26.01.

49. That the plaintiff, THOMAS RODRIGUEZ, was arraigned on such charges on March 5, 2023, at which time he pleaded not guilty to all of said charges.

50. That upon appearing before the Honorable Criminal Court, County of Kings, City and State of New York for arraignment, after having been further imprisoned at Central Booking, the plaintiff was permitted to leave on his own recognizance.

51. That subsequent to being released upon his own recognizance after having appeared before the Honorable Crimiinal Court, County of Kings, City and State of New York, the plaintiff appeared before the Honorable Criminal Court on June 9, 2023, at which time all of the said charges filed against plaintiff were dismissed by the Court.

52. That plaintiff was absolved of all charges wrongfully filed against him by

defendants DINUZZO and JOHN DOE(S),

53. That said arrest of the plaintiff by defendants DINUZZO and/or JOHN DOE(S), their agents, servants, employees, representatives, and others acting upon defendants' behalf, was perpetrated and committed by defendants, without probable cause or reasonable basis.

54. That defendants DINUZZO and/or JOHN DOE(S), acting as New York City Police Officers on behalf of defendant NYC, as well as defendants' agents, employees, servants, representatives, and/or others acting upon defendants' behalf, acted in bad faith and without probable cause or reasonable basis in committing the aforementioned arrest of the plaintiff, following their wrongful and baseless assault and battery of the plaintiff, THOMAS RODRIGUEZ, inclusive of defendants punching the plaintiff in his face and repeatedly punching, pounding, striking and beating the plaintiff, and thereafter wrongfully imprisoning, confining and detaining the plaintiff, none of which was with plaintiff's consent.

55. That defendants, their agents, employees, servants, representatives and/or others acting upon defendants' behalf, intended to imprison, confine and detain the plaintiff, THOMAS RODRIGUEZ, in that plaintiff was conscious of said imprisonment, confinement and detainment. Plaintiff did not consent to such imprisonment, confinement, and detainment; and said imprisonment, confinement and detainment was not otherwise privileged.

56. That at the time of his false arrest, and his wrongful imprisonment, confinement and detainment, the plaintiff, THOMAS RODRIGUEZ, had not committed any illegal act or crime.

57. That at the time of the false arrest, and wrongful imprisonment, confinement, and detainment of the plaintiff, THOMAS RODRIGUEZ, defendants knew, or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned arrest, imprisonment, confinement and detainment of the plaintiff was false and without probable cause.

58. That said actions perpetrated upon the plaintiff, THOMAS RODRIGUEZ, by defendants DINUZZO and JOHN DOE(S), caused the plaintiff to suffer serious, severe and permanent personal injuries, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation.

59. That the plaintiff, THOMAS RODRIGUEZ, was in police custody, was falsely/unlawfully/wrongfully arrested, imprisoned, confined and detained. The unlawful search and seizure was without due process of law and was done to deprive the plaintiff of her rights as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

60. It is alleged that defendants NYC, DINUZZO and JOHN DOE(S) failed to investigate the facts, and therefore, falsely, maliciously and intentionally arrested, imprisoned, confined, detained, and humiliated the plaintiff, THOMAS RODRIGUEZ, in violation of his constitutional rights.

61. As a direct result of defendants' actions, the plaintiff, THOMAS RODRIGUEZ, suffered and continues to suffer mental anguish, deprivation of liberty and privacy, humiliation, shame, emotional distress and damage to his reputation, some of which may be permanent.

62. That the plaintiff, THOMAS RODRIGUEZ, suffered greatly and was

emotionally traumatized by his excessive imprisonment, confinement and detainment.

63. That the false arrest, and wrongful imprisonment/confinement/detainment of the plaintiff, THOMAS RODRIGUEZ arose without any legitimate cause or justification on the part of defendants herein, and was intentional, malicious, reckless and in bad faith.

64. That as a direct and proximate result of defendants' herein referenced actions, plaintiff THOMAS RODRIGUEZ was deprived of his rights, privileges and immunities under the Fourth and Fourteenth Amendment to the United States Constitution and the laws of the City and State of New York.

65. That as a result of the foregoing, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants, THE CITY OF NEW YORK; NEW YORK CITY POLICE OFFICER ANTONIO DINUZZO, Shield No.: 21259; and "JOHN DOE(S)/JANE DOES, 1-10," said names being fictitious, as the actual names and identification of said individual police officers, employed by The City of New York and/or The New York City Police Department, are unknown at present, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF THE
PLAINTIFF, THOMAS RODRIGUEZ,
AGAINST THE DEFENDANTS HEREIN:**

66. The plaintiff, THOMAS RODRIGUEZ repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

67. That on March 4, 2023, at approximately 4:20 A.M., while the plaintiff, THOMAS RODRIGUEZ, was lawfully situated within premises commonly known and designated as 870 Macon Street, Apartment 1D, in the County of Kings, City and State of New York, the plaintiff was assaulted and battered by police officers employed by defendant NYC, inclusive of punching the plaintiff in the face and repeatedly punching, pounding, striking and beating the body of the plaintiff, perpetrated and committed by defendants DINUZZO and JOHN DOE(S), police officers employed by and acting on behalf of defendant NYC.

68. That on March 4, 2023, at approximately 4:20 A.M., while the plaintiff, THOMAS RODRIGUEZ, was lawfully situated within premises commonly known and designated as 870 Macon Street, Apartment 1D, in the County of Kings, City and State of New York, defendants DINUZZO and JOHN DOE(S), police officers employed by and acting on behalf of defendant NYC, violently punched the plaintiff in the face, and repeatedly punched, pounded, struck and beat the body of the plaintiff, all of which was with excessive and unjustified physical force, thereby constituting assault and battery upon the plaintiff.

69. That defendants' said wrongful actions herein referenced were perpetrated and committed upon the plaintiff, THOMAS RODRIGUEZ, by defendants without any incitement or provocation on the part of the plaintiff.

70. That as a result of the above-mentioned unprovoked assault and battery, the plaintiff, THOMAS RODRIGUEZ, was caused to sustain serious, severe and permanent personal injuries; was injured internally and externally; became sick, sore, lame and disabled; and was caused to suffer, and still suffers severe and permanent

injuries, and upon information and belief, will continue to suffer pain and discomfort; was caused to obtain medical care and attention in an attempt to cure himself of said injuries.

71. That as a result of the foregoing, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants, THE CITY OF NEW YORK; NEW YORK CITY POLICE OFFICER ANTONIO DINUZZO, Shield No.: 21259; and “JOHN DOE(S)/JANE DOE(S), 1-10,” said names being fictitious, as the actual names and identification of said individual police officers, employed by The City of New York and/or The New York City Police Department, are unknown at present, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE
PLAINTIFF, THOMAS RODRIGUEZ,
AGAINST THE DEFENDANTS HEREIN**

72. The plaintiff, THOMAS RODRIGUEZ, repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

73. The actions of defendants heretofore described constituted a false and unlawful arrest, unlawful confinement, unlawful detainment, false and wrongful imprisonment, malicious assault and battery, and usage of excessive physical force under the circumstances then and there existing, all in violation of plaintiff THOMAS RODRIGUEZ’s civil and constitutional rights.

74. Defendants deprived the plaintiff, THOMAS RODRIGUEZ, of his liberty,

in violation of his civil and constitutional rights, as set forth in the U.S. Constitution.

42 U.S.C. § 1983; 42 U.S.C. § 1985; 42 U.S.C. § 1986; and the Constitution of the State of New York.

75. Defendants, by their actions, violated the civil and constitutional rights of the plaintiff, THOMAS RODRIGUEZ, as set forth in the U.S. Constitution; 42 U.S.C. 1983; 42 U.S.C. § 1985; 42 U.S.C. § 1986; and the Constitution of the State of New York.

76. Defendants' actions were taken under the color of law and would not have existed but for said defendants using their official power.

77. The supervisors and policy making officers of defendant NYC, as a matter of policy, have failed to take steps to terminate the above-detailed practices, and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

78. Defendant NYC has failed to properly or effectively train its employees with regard to proper constitutional and statutory limits on the exercise of its authority, and such failure continues to this day.

79. Defendant NYC has sanctioned the above-described policy and practices through the deliberate indifference to the effect of said policy upon the constitutional and civil rights of the plaintiff, THOMAS RODRIGUEZ, and others similarly situated.

80. Defendants' motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York.

81. That as a result of the foregoing, the plaintiff, THOMAS RODRIGUEZ, has suffered serious and severe emotional distress, personal injuries, and loss to his

reputation.

82. That as a result of the foregoing, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants, THE CITY OF NEW YORK; NEW YORK CITY POLICE OFFICER ANTONIO DINUZZO, Shield No.: 21259; and “JOHN DOE(S)/JANE DOE(S), 1-10,” said names being fictitious, as the actual names and identification of said individual police officers, employed by The City of New York and/or The New York City Police Department, are unknown at present, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A FOURTH CAUSE
OF ACTION ON BEHALF OF THE
PLAINTIFF, THOMAS RODRIGUEZ,
AGAINST THE DEFENDANT, THE
CITY OF NEW YORK**

83. The plaintiff, THOMAS RODRIGUEZ, repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

84. Defendant NYC hired and retained in its employ police officers, including defendants DINUZZO and JOHN DOE(S), with knowledge that said police officers lacked the experience to be employed by the aforementioned defendants in said capacity, and therefore, were unfit to be police officers.

85. Defendant NYC hired and retained in its employ police officers, including defendant DINUZZO and JOHN DOE(S), with knowledge that said police officers lacked the training to be employed by the aforementioned defendants in said

capacity, and were, therefore, unfit to be police officers.

86. Defendant NYC hired and retained in its employ police officers, including defendants DINUZZO and JOHN DOE(S), with knowledge that said police officers lacked the department to be employed by the aforementioned defendants in said capacity, and, therefore, were unfit to be police officers.

87. Defendant NYC hired and retained in its employ police officers, including defendants DINUZZO and JOHN DOE(S), with knowledge that said police officers had previously exhibited violent propensities and were, therefore, unfit to be police officers.

88. That as a result of the negligence of defendant NYC, in connection with its hiring of police officers who lacked the experience, training and/or department to be employed by the aforementioned defendant; as well as defendant NYC's knowledge that said police officers had previously exhibited violent propensities; and were, therefore, unfit to be police officers, the plaintiff, THOMAS RODRIGUEZ, has suffered serious, permanent and severe physical injuries and emotional distress/trauma, and loss to his reputation.

89. That as a result of the foregoing, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendant, THE CITY OF NEW YORK, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A FIFTH CAUSE
OF ACTION ON BEHALF OF THE
PLAINTIFF, THOMAS RODRIGUEZ,
AGAINST THE DEFENDANTS HEREIN:**

90. Plaintiff THOMAS RODRIGUEZ repeats, reiterates and realleges each

and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

91. That defendants DINUZZO and JOHN DOE(S), as well as other employees, agents, servants and representatives of defendant NYC, negligently, carelessly and recklessly performed their police duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have used under similar circumstances.

92. That the aforementioned occurrences: to wit: the false and unlawful arrest, and subsequent unlawful imprisonment, confinement and detainment of the plaintiff, THOMAS RODRIGUEZ, following the assault and battery committed by defendants against the plaintiff herein, thereby causing plaintiff physical injury; pain and suffering; emotional distress/trauma; the violation of plaintiff's civil and constitutional rights; and the resulting injuries to plaintiff's mind and the body of the plaintiff therefrom, were caused, in whole or in part, by reason of the negligence of the defendants, their employees, agents, servants, representatives and others acting on behalf of the defendants, without any negligence on the part of the plaintiff, THOMAS RODRIGUEZ.

93 That as a result of the foregoing, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants, THE CITY OF NEW YORK; NEW YORK CITY POLICE OFFICER ANTONIO DINUZZO, Shield No.: 21259; and "JOHN DOE(S)/JANE DOE(S), 1-10," said names being fictitious, as the actual names and identification of said individual police officers, employed by The City of New York and/or The New York City Police Department, are unknown at present, in an

amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A SIXTH CAUSE
OF ACTION ON BEHALF OF THE
PLAINTIFF, THOMAS RODRIGUEZ,
AGAINST THE DEFENDANTS HEREIN:**

94. Plaintiff THOMAS RODRIGUEZ repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

95. Defendants' conduct towards Plaintiff was so outrageous and shocking that it exceeded all reasonable bounds of decadency tolerated by the average member of the community.

96. Defendants acted with the desire to cause the plaintiff, THOMAS RODRIGUEZ, physical and emotional harm, distress and pain, or acted under circumstances known to them which made it substantially certain that they would cause such physical and mental distress/trauma/pain.

97. Defendants acted with utter disregard of the consequences of their actions.

98. As a result of the foregoing, the plaintiff, THOMAS RODRIGUEZ, has sustained serious, permanent and severe physical injuries, as well as severe, permanent and debilitating emotional and psychological distress, anguish, anxiety, fear, humiliation and soreness.

99. That as a result of the foregoing, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants, THE CITY OF NEW YORK; NEW YORK CITY POLICE OFFICER ANTONIO DINUZZO, Shield No.: 21259; and "JOHN

DOE(S)/JANE DOE(S), 1-10,” said names being fictitious, as the actual names and identification of said individual police officers, employed by The City of New York and/or The New York City Police Department, are unknown at present, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A SEVENTH CAUSE OF
ACTION ON BEHALF OF THE
PLAINTIFF, THOMAS RODRIGUEZ,
AGAINST THE DEFENDANTS HEREIN:**

100. Plaintiff THOMAS RODRIGUEZ repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

101. Upon information and belief, defendants DINUZZO and JOHN DOE(S), employed by defendant NYC in their official capacity as New York City Police Officers, and individually assigned to the 73rd Precinct for The New York City Police Department, by their conduct and under color of state law, each had opportunity to intercede on behalf of the plaintiff, THOMAS RODRIGUEZ, to prevent said excessive use of force but due to their intentional conduct or deliberate indifference, declined or refused to do so.

102. As a result of the foregoing, the plaintiff, THOMAS RODRIGUEZ, has sustained serious, permanent and severe physical injuries, as well as severe, permanent and debilitating emotional and psychological distress, anguish, anxiety, fear, humiliation and soreness.

103. That as a result of the foregoing, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants, THE CITY OF NEW YORK; NEW YORK

CITY POLICE OFFICER ANTONIO DINUZZO, Shield No.: 21259; and “JOHN DOE(S)’JANE DOE(S), 1-10,” said names being fictitious, as the actual names and identification of said individual police officers, employed by The City of New York and/or The New York City Police Department, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR AN EIGHTH CAUSE
OF ACTION ON BEHALF OF THE
PLAINTIFF, THOMAS RODRIGUEZ,
AGAINST THE DEFENDANTS HEREIN:**

104. Plaintiff THOMAS RODRIGUEZ repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

105. That defendants DINUZZO and JOHN DOE(S), employees of defendant NYC, pursuant to their official capacity as police officers, had maliciously caused a prosecution by setting forth information resulting from said false arrest made of the plaintiff on March 4, 2023, and thereafter, which defendants DINUZZO and JOHN DOE(S) knew were false; and which were set forth as a means to justify the wrongful and improper actions perpetrated and committed by defendants upon the plaintiff herein.

106. That defendants DINUZZO and JOHN DOE(S), employees of defendant NYC, pursuant to their official capacity as police officers, had maliciously caused a prosecution by setting forth information resulting from said arrest made of the plaintiff on March 4, 2023, and thereafter, which defendants DINUZZO and JOHN

DOE(S) knew were false; and which were set forth as a means to justify to wrongful and improper actions perpetrated by defendants upon the plaintiff herein, all of which resulted in the issuance of temporary restraining order/order of protection without basis, and which resulted from the presentment of facts by defendants which defendants knew were false, and was done as a means to justify defendants' wrongful conduct in falsely arresting the plaintiff, in connection therewith, inclusive of defendants assaulting and battering the plaintiff, which consisted of punching the plaintiff in the face and repeatedly punching, pounding, striking and beating the body of the plaintiff, and wrongfully and maliciously imprisoning, confining and detaining the plaintiff thereafter.

107. That plaintiff had not committed any illegal acts.

108. That plaintiff had never given defendants DINUZZO and/or JOHN DOES(S), and/or any other agents, employees, servants, representatives and/or others acting on defendant NYC's behalf, to believe that he committed the illegal acts set forth by defendants NYC, DINUZZO and/or JOHN DOE(S).

109. Defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that said investigation was flawed or incomplete.

110. As a result of the foregoing malicious prosecution, the plaintiff, THOMAS RODRIGUEZ, suffered and continues to suffer substantial and permanent damages.

111. As a result of the foregoing, plaintiff THOMAS RODRIGUEZ, has sustained serious, permanent and severe personal injuries, as well as severe and

debilitating emotional and psychological distress, trauma, anguish, anxiety, fear, humiliation and soreness.

112. That as a result of the foregoing, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants, THE CITY OF NEW YORK; NEW YORK CITY POLICE OFFICER ANTONIO DINUZZO, Shield No.: 21259; and “JOHN DOE(S)/JANE DOES, 1-10,” said names being fictitious, as the actual names and identification of said individual police officers, employed by The City of New York and/or The New York City Police Department, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A NINTH CAUSE
OF ACTION ON BEHALF OF THE
PLAINTIFF, THOMAS RODRIGUEZ,
AGAINST THE DEFENDANT, THE
CITY OF NEW YORK:**

113. The plaintiff, THOMAS RODRIGUEZ, repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

114. Defendant NYC negligently failed to properly train those police officers identified herein, including defendants DINUZZO and JOHN DOE(S), with the proper procedures to follow under the circumstances as they appeared herein; negligently supervised or failed to supervise its employees, agents, servants and/or representatives engaged in such practices; negligently disciplined or failed to discipline its employees, agents, servants and/or representatives in such practices.

115. Defendant NYC failed to properly or effectively train, supervise and discipline its employees, agents, servants, representatives and/or others acting upon said defendants' behalf, with regard to proper procedure under the circumstances as they appeared herein. Defendant NYC was negligent in its retention of its employees, agents, servants and/or representatives, including defendants DINUZZO and JOHN DOE(S), who, defendant NYC knew, or in the course of proper and adequate investigation should have known, were unfit to continue to hold their positions of authority.

116. Defendant NYC's negligence in failing to properly train and/or supervise said individuals employed by defendant as police officers acting on behalf of defendant NYC and The New York City Police Department thereby resulted in the plaintiff being assaulted and battered, inclusive of plaintiff having been repeatedly punched in the face and repeatedly punched, pounded, struck and beaten, and in defendant's said police officers falsely arresting the plaintiff without probable cause or reasonable justification, and thereafter wrongfully imprisoning, confining and detaining the plaintiff for an unreasonably lengthy period of time, all of which occurred without any provocation or incitement by the plaintiff.

117. That as a result of the negligence of defendant NYC, in connection with its failure to properly train and supervise its police officers, including defendants DINUZZO and JOH DOE(S), the plaintiff, THOMAS RODRIGUEZ has suffered serious and permanent physical injuries, and severe emotion distress, and loss to his reputation.

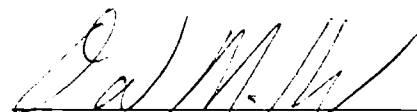
118. That as a result of the foregoing, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendant, THE CITY OF NEW YORK, in an

amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

WHEREFORE, the plaintiff, THOMAS RODRIGUEZ, hereby demands judgment against the defendants herein, on the First Cause of Action, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, and which warrants the jurisdiction of this Court; on the Second Cause of Action, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; on the Third Cause of Action, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; on the Fourth Cause of Action, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendant, THE CITY OF NEW YORK, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; on the Fifth Cause of Action, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, and which warrants the jurisdiction of this Court; on the Sixth Cause of Action, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; on the Seventh Cause

of Action, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, and which warrants the jurisdiction of this Court; on the Eighth Cause of Action, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, and which warrants the jurisdiction of this Court; on the Ninth Cause of Action, the plaintiff, THOMAS RODRIGUEZ, demands judgment against the defendant, THE CITY OF NEW YORK, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, and which warrants the jurisdiction of this Court; together with costs and disbursements of this action.

Dated: Brooklyn, New York
October 27, 2023



DAVID M. HARRISON, ESQ.

Attorney for Plaintiff
THOMAS RODRIGUEZ
Office & P.O. Address
48 Willoughby Street
Brooklyn, NY 11201
Tel: (718) 243-2109
Fax: (718) 243-1144
E-mail: dharrison@pankinlaw.com

VERIFICATION

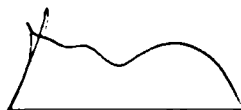
STATE OF NEW YORK)
) ss.:
 COUNTY OF KINGS)

THOMAS RODRIGUEZ, being duly sworn, deposes and says:

I am the plaintiff in the foregoing action, and have both read and reviewed the foregoing COMPLAINT. That same is true to deponent's own knowledge, except as to matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes them to be true.


THOMAS RODRIGUEZ

Sworn to before me this 27th
 day of October, 2023



NOTARY PUBLIC

DAVID PANKIN
 Notary Public, State of New York
 No. 02PA5024345
 Qualified in Nassau County
 Commission Expires March 07, 2026 2-6

ATTORNEY CERTIFICATION

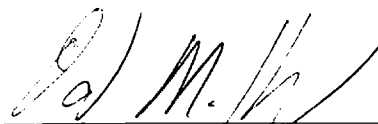
STATE OF NEW YORK }

ss.:

COUNTY OF NEW YORK }

The undersigned, an attorney admitted to practice in the Courts of New York State, and the attorney for the plaintiff in this action, THOMAS RODRIGUEZ, hereby certifies, pursuant to Sec. 130-1.1-a of the Rules of the Chief Administrator (NYCRR) that to the best of my knowledge, information and belief, after an inquiry reasonable under the circumstances, that the presentation of the Complaint in this action, or the contentions therein, are not frivolous as defined in subsection (c) of Sec. 130-1.1 of the Rules of the Chief Administrator (22NYCRR).

Dated: Brooklyn, New York
October 27, 2023



DAVID M. HARRISON, ESQ.

SUPREME COURT OF NEW YORK
COUNTY OF KINGS

Index No.:

THOMAS RODRIGUEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK;
NEW YORK CITY POLICE
OFFICER ANTONIO
DINUZZO, Shield No.: 21259;
“JOHN DOE(S)/JANE DOE(S),
1-10,” said names being fictitious,
as the actual names and
identification of said individual
police officers, employed by The
City of New York and/or The
New York City Police
Department, are unknown at
present,

Defendant(s).

SUMMONS WITH NOTICE & VERIFIED COMPLAINT

DAVID M. HARRISON, ESQ.

Attorney for the Plaintiff
THOMAS RODRIGUEZ
Office & P.O. Address
48 Willoughby Street
Brooklyn, New York 11201
(718) 243-2109

PLEASE TAKE NOTICE:

☐ Notice of Entry

that the within is a (certified) true copy of Order
the clerk of the within named court on

duly entered in the office of

☐ Notice of Settlement

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court, at
on 20 at M.